

23LBCV00750 23LBCV00750

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-11

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Case Number: 23LBCV00750 Hearing Date: August 11, 2026 Dept: S27

BACKGROUND

Plaintiff Kinecta

Federal Credit Union alleges Defendant Hector Reyna defaulted on a loan, thereby leaving an outstanding balance of \$17,558.29, and on a revolving credit account (credit card), with an outstanding balance of \$10,39518. On April 25, 2023, Plaintiff filed a complaint for 1. Breach of Unsecured Written Agreement 2. Common Count 3. Breach of Agreement 4. Open Book Account, and 5. Account Stated.

On December 7, 2023, the clerk entered a default. On December 8, 2023, the court entered a default judgment for \$32,375.60. On April 22, 2026, the clerk issued a writ of execution, which led to judgment debtor filing a claim of exemption, and the setting of the hearing by Judgment Creditor.

DISCUSSION

Applicable Law

(a) The claim of exemption and notice of opposition to the claim of exemption constitute the pleadings, subject to the power of the court to permit amendments in the interest of justice.

(b) At a hearing under this section, the exemption claimant has the burden of proof.

(c) The claim of exemption is deemed controverted by

the notice of opposition to the claim of exemption and both shall be received in evidence. If no other evidence is offered, the court, if satisfied that sufficient facts are shown by the claim of exemption (including the financial statement if one is required) and the notice of opposition, may make its determination thereon. If not satisfied, the court shall order the hearing continued for the production of other evidence, oral or documentary.

(Code Civ. Proc., § 703.580.)

“Money in a judgment debtor's deposit account that is not otherwise exempt under this chapter is exempt to the extent necessary for the support of the judgment debtor and the spouse and dependents of the judgment debtor.” (Code Civ. Proc., § 704.225)

Analysis

Judgment Creditor

represents the exemption is based on necessities and family support. (Code Civ. Proc., § 706.051, subd. (b).) Judgment Debtor submitted no application or information to the court. The opposition states that judgment debtor lacks documentation in support.

Judgment Creditor

filed the notice of exemption hearing and challenges the lack of documentation. Judgment Creditor represents Judgment Debtor presented a financial statement showing gross earnings of “\$16,000 per month,” tax and withholdings and deductions of \$5,041,” and “monthly expenses of \$500.00 for utility and telephone, \$1,500.00 for food and household supplies, \$5,000.00 for house payment and maintenance and \$800.00 for transportation and auto expenses.... [The list also includes] \$500.00 for clothing, \$25.00 for medical and dental and \$150.00 for laundry and cleaning ... \$200.00 for entertainment and \$190.00 for insurance.” Judgment Creditor summarizes the financial sheet as take home pay of \$10,959, with \$8,865 in expenses. Judgment Creditor requests 20% allowable by law per pay period for payment on account of this debt.

Again, the

application lacks any presented information, thereby allowing the court to determine the validity of the claim. The court therefore continues the hearing in order to allow Judgment Debtor to submit documentation to the court for review.

(Code Civ. Proc., § 703.580, subd. (c).)

CONCLUSION

Reyna's Claim of Exemption is CONTINUED.

Judgment Creditor to give
notice.